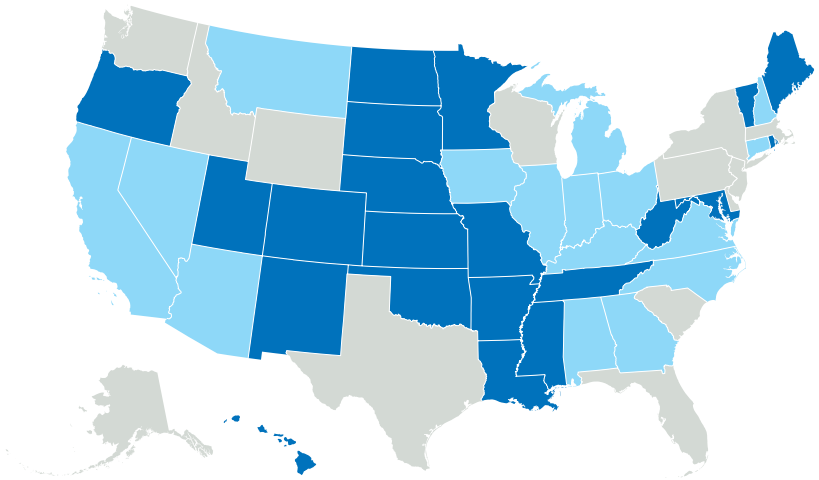
THE HOSPITAL AND HEALTHSYSTEM ASSOCIATION OF PENNSYLVANIA

340B: State protection comparison

STATE COMPARISON — MARCH 2026

CONTRACT PHARMACY PROTECTION BY STATE (U.S.)



Contract pharmacy protection enacted | PBM regulation only (no contract pharmacy protection) | No enacted contract pharmacy protection

STATE CONTRACT PHARMACY PROTECTION STATUS

STATE	CONTRACT PHARMACY	PBM LAW	YEAR	NOTES
Alabama	No	**Yes**	2021	
Alaska	No	No	—	
Arizona	No	**Yes**	2022	
Arkansas	**Yes**	**Yes**	2021	First to enact; upheld in court.
California	No	**Yes**	2023	
Colorado	**Yes**	**Yes**	2022	Contract pharmacy 2025.
Connecticut	No	**Yes**	2023	
Delaware	No	No	—	
Florida	No	No	—	
Georgia	No	**Yes**	2020	
Hawaii	**Yes**	No	2025	Reporting required.
Idaho	No	No	—	
Illinois	No	**Yes**	2022	
Indiana	No	**Yes**	2021	
Iowa	No	**Yes**	2023	
Kansas	**Yes**	No	2024	
Kentucky	No	**Yes**	2020	
Louisiana	**Yes**	**Yes**	2023	Upheld in court.
Maine	**Yes**	No	2025	Hybrid 2025.
Maryland	**Yes**	No	2024	
Massachusetts	No	No	—	
Michigan	No	**Yes**	2022	
Minnesota	**Yes**	**Yes**	2019	Upheld in court.

STATE	CONTRACT PHARMACY	PBM LAW	YEAR	NOTES
Mississippi	**Yes**	**Yes**	2024	
Missouri	**Yes**	No	2024	Upheld in court.
Montana	No	**Yes**	2021	
Nebraska	**Yes**	**Yes**	2022	
Nevada	No	**Yes**	2023	
New Hampshire	No	**Yes**	2024	
New Jersey	No	No	—	
New Mexico	**Yes**	**Yes**	2023	
New York	No	No	—	
North Carolina	No	**Yes**	2021	
North Dakota	**Yes**	**Yes**	2021	
Ohio	No	**Yes**	2021	Hybrid 2025.
Oklahoma	**Yes**	No	2025	
Oregon	**Yes**	**Yes**	2025	
Pennsylvania	No	No	—	In progress.
Rhode Island	**Yes**	**Yes**	2025	Upheld in court.
South Carolina	No	No	—	
South Dakota	**Yes**	**Yes**	2024	
Tennessee	**Yes**	**Yes**	2021	Upheld in court.
Texas	No	No	—	
Utah	**Yes**	**Yes**	2020	
Vermont	**Yes**	**Yes**	2021	Hybrid 2025.
Virginia	No	**Yes**	2021	Governor vetoed protection.
Washington	No	No	—	
West Virginia	**Yes**	**Yes**	2024	
Wisconsin	No	No	—	
Wyoming	No	No	—	

Sources: MultiState · ASHP · America's Essential Hospitals (state law) · 340B Health · AHA (community benefit) · HRSA Program Integrity FY 2024 (audit counts) · 42 U.S.C. §256b (federal statutory basis)

Limitations: State law counts change as legislatures meet. Community benefit totals are self-reported aggregates, not independently audited.